

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1305

By: Lowe (Dick)

AS INTRODUCED

An Act relating to student athletes; amending 70 O.S. 2021, Section 820.25, as last amended by Section 2, Chapter 85, O.S.L. 2024 (70 O.S. Supp. 2024, Section 820.25), which relates to name, image, and likeness activities; requiring postsecondary institutions offer financial literacy workshops; requiring certain topics in workshops; prohibiting certain topics in workshops; authorizing postsecondary institutions to offer financial literacy course; requiring certain topics in course; prohibiting certain topics in course; requiring student athletes complete workshop or course; authorizing professional support for student athletes; requiring certain disclosure by professional support; authorizing postsecondary institutions to contract with certain third parties; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 820.25, as last amended by Section 2, Chapter 85, O.S.L. 2024 (70 O.S. Supp. 2024, Section 820.25), is amended to read as follows:

Section 820.25. A. A student athlete shall not use a postsecondary institution's marks for the purpose of securing

1 compensation for use of his or her name, image, or likeness unless
2 authorized by the postsecondary institution.

3 B. A student athlete shall not enter into a name, image, and
4 likeness agreement involving a commercial product or service that
5 conflicts with a written policy of the postsecondary institution or
6 that negatively impacts or reflects adversely on the postsecondary
7 institution or its athletic programs including, but not limited to,
8 generating public disrepute, embarrassment, scandal, ridicule or
9 otherwise negatively impacting the reputation or the moral or
10 ethical standards of the postsecondary institution.

11 C. A contract for the use of a student athlete's name, image,
12 or likeness or a contract for professional representation related to
13 name, image, or likeness that is formed while the student athlete is
14 participating in an intercollegiate sport at a postsecondary
15 institution may not extend beyond the student athlete's
16 participation in the sport at the institution unless the contract is
17 between the student athlete and the postsecondary institution or a
18 third party authorized to act on behalf of the postsecondary
19 institution.

20 D. A postsecondary institution may adopt reasonable time,
21 place, and manner restrictions to prevent a student athlete's name,
22 image, or likeness activities from interfering with team activities,
23 the postsecondary institution's operations, or the use of the
24 institution's facilities. A postsecondary institution may receive

1 compensation for the use of its institutional marks or facilities in
2 conjunction with a student athlete's name, image, and likeness
3 activities.

4 E. A collegiate athletic association shall not prohibit a
5 postsecondary institution from establishing agreements with a third
6 party to act on its behalf to identify, facilitate, enable, or
7 support student athlete name, image, and likeness activities.

8 F. ~~An 1. A postsecondary institution may require a student~~
9 ~~athlete to take courses or receive education or training in~~
10 ~~contracts, financial literacy, or any other subject the~~
11 ~~postsecondary institution deems necessary to prepare a student~~
12 ~~athlete to engage~~ shall offer no less than three financial literacy
13 workshops per year for student athletes engaged in name, image, and
14 likeness activities. At least two of the workshops shall be a
15 minimum of five (5) hours in length and offered within one hundred
16 twenty (120) days after the first day of the fall semester each
17 academic year. At minimum, each workshop must include information
18 concerning foundational knowledge of budgeting, taxes, contracts,
19 credit and debt management, savings, investments, and
20 entrepreneurship. The workshops shall not include any marketing,
21 advertising, referral, or solicitation by providers of financial
22 products or services.

23 2. A postsecondary institution may offer financial literacy as
24 a course for credit, which, at minimum, includes information on

1 budgeting, taxes, contracts, credit and debt management, savings,
2 financial aid, investments, and entrepreneurship. The course shall
3 not include any marketing, advertising, referral, or solicitation by
4 providers of financial products or services. Postsecondary
5 institutions offering financial literacy as a course for credit may
6 adopt policies which allow the course to be applied toward degree
7 requirements.

8 3. Postsecondary institutions shall require student athletes to
9 either participate in a workshop or successfully complete one
10 financial literacy course within the first two (2) semesters of the
11 student athlete engaging in name, image, and likeness activities.
12 Student athletes who fail to meet the requirements provided for in
13 this paragraph shall forfeit his or her eligibility to engage in
14 name, image, and likeness activities.

15 4. A postsecondary institution may provide support to student
16 athletes through contract review, tax preparation, and financial
17 advisor services after the successful completion of a financial
18 literacy workshop or during enrollment or after completion of the
19 financial literacy course. Any professional providing services
20 under this paragraph may not charge a student athlete any fees or
21 commissions or require any compensation from such student athlete.
22 If the professional is an employee of the postsecondary institution,
23 such professional must disclose in writing to the institution and
24 the student athlete any additional employment which may create a

1 conflicting contractual relationship with a third party. Any
2 professional providing services to student athletes under this
3 paragraph shall not provide marketing, advertising, referrals, or
4 solicitations of financial products or services.

5 5. Postsecondary institutions may contract with a third party,
6 as necessary, to conduct the financial literacy workshops as
7 required by this subsection.

8 SECTION 2. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

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13 60-1-10344 AQH 12/28/24
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